

IT Act 2000

Information Technology Act, 2000

Information Technology (IT) Act, 2000

User Query :

I paid ₹1,20,000 as an advance for a second-hand car advertised online. The seller sent photographs of the vehicle, an identity document and what appeared to be registration papers. After receiving the money, the seller stopped responding. I later discovered that the vehicle belonged to another person and that some of the documents had been altered. What legal provisions may apply?

Job Id. :

Scenario 5/Information Technology (IT) Act, 2000

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Date :

25 August 2026

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AI-Powered Legal Intelligence Platform

✓ STRENGTHS & RIGHTS

1 Victim Empowerment

Section 66 allows victims to file a cybercrime complaint with the Cyber Crime Police Station (CCPS) or Cyber Cell, bypassing traditional police delays.

2 Electronic Evidence

Section 82 permits the admissibility of digital evidence (e.g., altered documents, chat logs) without physical verification, streamlining prosecution.

3 Speedy Redressal

Section 79 (intermediary liability) ensures platforms hosting fraudulent ads (e.g., OLX, Facebook) must preserve evidence upon complaint, aiding investigation.

4 Data Protection

Section 43A (though not directly applicable here) establishes accountability for data breaches, indirectly supporting victim claims against platforms failing to verify sellers.

✗ RISKS & OBLIGATIONS

1 Criminal Liability

The seller faces up to 3 years imprisonment + ₹1 lakh fine (**Section 66**) + additional penalties under **Section 66D** (up to 3 years).

2 Civil Liability

The victim may sue for refund under **Section 79** (if the platform failed to verify seller identity) but must prove negligence.

3 Evidence Challenges

Without digital footprints (e.g., IP logs, payment records), prosecution may fail. *Example*: If the seller used burner phones or encrypted apps, tracing becomes difficult.

4 Victim Risk

Delayed complaint filing (beyond 6 months) may weaken evidence under **Section 65B** (certification of electronic records).

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